
Journal

1985 SCMR 257

Court

Date

1984-09-19

Appeal No.

CRIMINAL APPEALS NOS. K-21 TO K-33 OF 1983

Judge

ASLAM RIAZ HUSSAIN, ABDUL KADIR SHAIKH AND S. A. NUSRAT

Parties

MIAN MUNTR AHMAD APPELLANT VERSUS THE STATE (RESPONDENT)

Lawyers

MANSOOR AHMAD KHAN, ADVOCATE SUPREME COURT WITH SHABBIR GHURY,
ADVOCATE-ON-RECORD FOR APPELLANT. /A. SATTAR SHAIKH, ADDL. A. G. SIND WITH
MUZAFFAR HASSAN, ADVOCATE-ON-RECORD FOR RESPONDENT.

Statutes

CONSTITUTION OF PAKISTAN 1973 - ARTICLE 185(3) CRIMINAL PROCEDURE CODE (V OF 1898) - S.561-A CRIMINAL PROCEDURE CODE (V OF 1898) - S.435 INDUSTRIAL RELATIONS ORDINANCE (XXIII OF 1969) - SS. 35(5) AND 36 WEST PAKISTAN INDUSTRIAL AND COMMERCIAL EMPLOYMENT (STANDING ORDERS) ORDINANCE (VI OF 1968) - S.2(G), SCHEDULE CRIMINAL PROCEDURE CODE (V OF 1898) - SS. 5(2), 6, 14 AND 30 INDUSTRIAL RELATIONS ORDINANCE (XXIII OF 1969) - S.35/36 CRIMINAL PROCEDURE CODE (V OF 1898) - SS. 561-A AND 249-A CRIMINAL PROCEDURE CODE (V OF 198) - SS. 561-A, 249-A & 265-K

Judgment

* ASLAM RIAZ HUSSIAN, J.-This judgment will dispose of Criminal Appeals Nos. K-21 to K-33 of 1983, as they arise out of the same facts, between the same parties and are directed against the same judgment of the Sind High Court, dated 13-2-1983. . .

- T J 2.

Facts giving rise to the present appeals are, briefly as follows Mian Munir Ahpnad and. Sons Ltd. (hereinafter called nthe company") has its registered office at Wallace Road> Off 1.1.

Chundrigar Road, Karachi. The company runs a beverage bottling at their factory which is situated in, the S.I.T.E. at Kotri.in District Dadu.

" " 1 > 3. Theappellant, as Managing Director of the company, sits at the registered office at Karachi and only visits the Factory as and when the need- arises. The. affairs of factory are under the direction and T* _ _ supervision of the Factory Manager whose name is communicated to the Factories Inspector as required by the Factories Act, 1934, and is shown in various 'Returns1 under the law. According to law it is the Factory Manager who -is directly incharge and responsible for the working and operating of the Factory. r t: For the manufacture of its product (Pepsi Cola) the Factory employs is own workmen, who are on the pay roll of the Factory.

But in respect of certain other works, for example construction of new " i, ' " FI buildings etc. within the premised bf "the Factory, thesame is entrusted to contractors who employ their own labour.

Similarlyfor loading and unloading of the material in the Factory, the company/factory instead of employing its own labour awards the work to a contractor on lump sum basis. The said contractor then performs the work through his own labour, employed in his own discretion and in accordance with the quantum of the work involved.

% i V 4, According to the apellant, during the season in question the contract of loading and unloading the material in the Factory was awarded by the company to one. Abdul Hamid Contractor, who had employed his own labour for the said work. These workers, it is asserted had nothing to do with the company, directly or indirectly.

- i - i * ' 5. On the 25th Of September, 1980, Mr. Nadir Khan, an Assistant Director in the Labour Department at Hyderabad visited the Factory and during the inspection he found a number of faults with the working of the Factory involving breach of labour laws.

He pointed out, inter

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_ alia, that the contractor's wwlkers had not been issued attendance tickets as required by auction 2 of Schedule under section 2(g) of the West Pakistan (Standing Orders;) (Ordinance, 1968 (hereinafter called the Standing Orders"* Ordinance)).' It xnas.

explained to him by the Factory Manager that the workers ir qiu-estioro ere not employees of the Factory but were those of tlte contractor. Nadir Khan, Assistant Director appeared to be satisfied i)y explanation and left the Factory. But subsequently, on 4;- L0-138 0 a he issued a show-cause

notice to the appellant-factory in which a number of allegations were made, inter alia, the contravention of section 2 of Schedule under section 2(g) of the Standing Orders Ordinance, in respect of non-issuance of attendance tickets to the 'workers of the? eointr*a>cto*r% The notice may be reproduced here, in extenso for facility of reference:- , m ~ k NTO The Manager/Occupiers * ' 1 Fazal Sons, HCL f Site, Kotri,. District! D*adu- .

1 * ,ir * - i * j Sub:-Inspection under various Labour Laws.

1 i Dear Sir, : - * F

The undersigned inspected your factory on 25-9-1980 and detected the following irregularities:-

'i i i - - * j- k t.

1. - That the Register of Adult workers was not maintained on form M and Bi J. as required under section 41 of the Factories Act.

2, i That the fire alarm has not been provided as required under section 25(5) of the Factories Act. .

3.. That Emergency Lighting arrangements were not provided as required under section 19-B of the Factories Act. , f - r - ' i h . 4.. That the fire-fighters Contractor have not been provided with Attendance Ticket., as required under section 2(g) of the Standing Orders Ordinance, 1968. ' ' j % .

1* r You are hereby called upon to show cause within seven days of the receipt of this letter as to why legal action may not be taken against you for the above violations of labour law.

i ' ' Yours faithfully, ' I * - ' i » T , ' * ' (Sd\) . 1 * . (Nadir Khan Yousafzai) J Assistant Director : Labour , (Inspection) Hyderabad.

' H (the underlining is ours) ' r f The reply to the notice 'was duly sent by the company vide letter dated 27-10-1980, denying, inter alia, the contravention of the provisions of the Standing

' 1 ' * Nadir Khan, however, filed 13 different complaints against the appellant/ one in respect of each worker, in the Labour Court. ' . .

ft The Factory Manager duly informed the Managing Director (i.e.

the appellant) about the filing of these complaints and attended the Court on the date fixed for hearing i.e. 25-4-1981. It was, however, revealed on that date that bailable warrants had already been issued against Munir Ahmad appellant, the Managing Director of the Company, requiring his presence in person, although, according to the appellant he had never been served with the process of the Court. On a prayer made by the Factory Manager the case was adjourned to 9-5-1981, with a direction that the appellant be produced in person on that date..

h M F On the next date of hearing the appellant attended the Court, furnished the required security and executed bail bonds in each case. He also filed an application for exemption from personal attendance. The hearing of this application was however, postponed from time to time, with the result that the appellant was forced to attend the Court on each and every date of hearing, although the Factory Manager was also regularly attending the Court. The appellant

was, thus, subjected to considerable harassment. The appellant also moved an application under section 249-A, Cr.P.C. The appellant also moved the Sind High Court through applications under section 561-A, Cr.P.C. for the quashment of the criminal proceedings pending against him in the Labour Court at Hyderabad. These petitions were heard by a learned Single Judge of the Sind High Court, but were dismissed on 4-11-1981, on the ground that the remedy available under section 249-A, Cr.P.C., should first be exhausted. The appellant accordingly pressed his applications under section 249-A, Cr.P.C., which were already pending before the learned Labour Court. These were, however, dismissed by the trial Court on 21-11-1981, on the ground of lack of jurisdiction. Fresh applications under section 249-A, Cr.P.C* one in each case, were, however, moved on grounds which had not been considered by the trial Court in its earlier order. The learned trial court again dismissed the applications by an order dated 6-3-1982.

Thereafter, the appellant repeated the applications under section 561-A, Cr.P.C., before the Sind High Court, Karachi. All the 13 applications were admitted to regular hearing, but were ultimately dismissed by a learned Single Judge of that Court on 13-2-1983 on the ground that the High Court had no jurisdiction to exercise its inherent powers under section 561-A, Cr.P.C., to quash proceedings pending before a labour Court as the same was not a Court subordinate to the High Court.

h " t Feeling aggrieved the appellant filed 13 separate petitions for] leave to appeal. Leave was granted to him on 19-4-1983 to consider as to whether or not the High Court was correct in taking the view that it had no jurisdiction under section 561-A, Cr.P.C. in respect of the proceedings pending before the Labour Court, which was dealing with] the case "in its capacity as a Section 30 Magistrate¹¹.

6. We have, heard the learned counsel for the appellant as well as the learned Additional Advocate-General at considerable length and have also gone through the impugned judgment and the authorities cited by each side. We notice that the view taken by the High Court is based solely on the ground that since appeals against the decision of a Labour Court in criminal cases do not lie to the High Court, it is not a criminal Court Subordinate' or inferior to the High Court and as such the High Court has no jurisdiction to quash criminal proceedings pending before the Labour Court in exercise of its powers under section 561-A, 11... .the main question which requires consideration is, whether the Labour Court in question is Court subordinate to the High Court and/or inferior to the High Court so as to attract the provisions of section 561-A, Cr.P.C. The question of inferior Court and/or subordinate Court has been very clearly laid down by the Hon'ble Supreme Courts in the case of. Abdul Hafiz v.

State P L D 1981 SLC; 352. In this judgment the Hon'ble Supreme Court has held, that even- at special Court, if its orders has been made appealable to High Court, irrespective of the? finality attached to its orders/ would be inferior to the High Court by virtue of fact that its order having been made appealable to >High Court. In the present case the orders of the Labour Court under section * 37C3) of I .R_0., 1969 is appealable to Labour Appellate Tribunal and not to this Court and as such the Labour Court cannot be considered as inferior Court and/or subordinate i ' - lb l'.

% -T t p .

Cr.P.C. The relevant portion of the impugned judgment reads as follows- ~ 4 m- Court , to the High "Court, so as. to attract the provisions of section 561-A, Cr.P.C.. On the basis of above-referred decision * 4- f of; the Hon'ble Supreme Court, the Divisional Bench of this Court, in the case of Abdul Rahim v . Abdul Bauf in Criminal Miscellaneous Appeal No. 857/82, by its judgment dated 23rd November, 1982 to which I* was also party has held, that the main factors which needs consideration in deciding questions of this nature;-i.e. of subordination is the venue, of

appeal.

Under the R.O. appeal r» * j r , _ , T. T A - I I. J ' against 'the 3ecisi6rt 'of' the Labour fourth as bee ri provid ed j to j , -f * --il » Labour Appellate Tribunal and not to this Court\and since Labour Court is a special Court and admittedly it has not been established under the. provisions of the Criminal Procedure Code, at cannot be considered to be inferior to the High Court, and/or subordinate to the High Court, so as . to.'-attract the PTOVISIONS of .section 561-A; .Cr.P. C .',l r * r l r * ii j It appears that in arriving at this conclusion, the learned Judge in Chambert was influenced; by the. observations of this Court in Abdul Hafeez v. State PLD 1981 S CJ52.

_ A reading of. that.judgment would,: however,, show. that .the;, case decided thereby related to the revisional powers of the High Court under\ section' 435/439, Cr.P.C. and, there is no mention therein of F T J." ' j section 561-A, Cr.P.C. It would be noticed ..that .section 435, Cr.P;C,, ' ' ' M T t i- l * ' expressly _ provides . that, the High Court can 'exercise its revisional jurisdiction only with respect to the proceedings pending before Criminal Courts, inferior to it;, rw.hereas sectipn 561, CriP.C. makes no mention of inferior or subordinate Courts and empowers the High Court to exercise its jurisdiction thereunder with respect to_ proceedings in any 1 (Court. j ' ? v , * * 7. We are, therefore, of the view that J lie .observations in the case of AbduK Hafeez . (supra) are not applicable toMhe facts of the case in Hand'. The relevant portion of section 4353f Cr.P.C. reads as follows*:- r T ' d r ' 11 L . "Power to call for records of Inferior Courts.*-'. (I) The-High ,, Court or any . Sessions-Judge or Distriet. Judge, or any Sub- ' Divisional Magistrate empowered by the Provincial-GovernmenUin this behalf, may call for and examine the record of any proceeding : before any inferior Criminal Court situate within the local limits of its or his jurisdiction for the purpose of satisfying itself for himself as to the correctness, legality or propriety of any finding, r. * & sentence or order recorded or passed, and as to the regularity of any proceedings of such inferior Court and may, when calling for such record, direct that the execution of any sentence be suspended and, if the accused is in confinement, that he is released on bail or on his own bond pending the examination of the record.

Explanation.- All Magistrates, whether exercising original or appellate jurisdiction, shall be deemed to be inferior to the Sessions Judge for the purposes of this subsection.....11 8. The learned counsel for the appellant attempted mainly to meet this objection and to show that the Labour Court was, in fact, inferior and subordinate to the High Court and, as such, power under section 561-A, Cr.P.C. be exercised to quash the proceedings pending could before it. He referred to section 35 of the Industrial Relations Ordinance, to submit that the Labour Court was empowered to try offences, inter alia, under the Standing Orders Ordinance. The relevant portion of this section, i.e.

section 35(5) reads as follows:- 35(5) (c) 35.(1) (2) (3) (4) (5) A Labour Court shall.- .

(a) (b) » (c) try offences under this Ordinance and such other offences under any other law as the Provincial Government may, by notification in the official Gazette, specify in this behalf." H He then read out the following portions of section 36 of the I.R.O. to urge that the Presiding Officer of the Labour Court had been constituted as a Section 30 Magistrate and was to try criminal cases as such:- S.36(I) and (3) "36. Procedure and powers of Laboury Court.- (I)Subject to the provisions of this Ordinance, while trying an offence, a Labour Court shall follow as nearly as possible summary procedure as prescribed under the Code of Criminal Procedure, 1898.

(3) A Labour Court shall, for the purpose of trying an offence under this Ordinance, or the West Pakistan Indus- 1 trial and Commercial Employment (Standing Orders) Ordinance, 1968 (W.P. Ordinance VI of 1968), has the same powers as are vested in the Court of a Magistrate of the first class specially empowered under section 30 of the Code of Criminal Procedure, 1898 (Act V

of 1898).n h He referred to section 6 of the Criminal Procedure Code to show that there shall be the following classes of subordinate criminal Courts in Pakistan:- (i) Court of Sessions; (ii) Magistrate of the first class; .

h (iii) Magistrate of the 2nd class ; arid a- (iv) Magistrate of the 3rd class.^{11*} He then pointed out that section 14 CC the Cr.P.C., authorises the Provincial Government to appoint. Special Magistrate in respect of particular class of cases and urged that tite Presiding Officer of the Labour Court was, in fact, a Special Magistrate under the Code of Criminal Procedure appointed to try a special class of cases referred to in section 35 of the I.R.O.

ri 4 i* After laying this foundation he argued that it was evident that: . ' i p r .

i „ _ (i) a Labour Court exercising the powers under subsection (3) . of section 36 of the I.R.O. is a Magistrate with powers under section 30, Cr.P.C....., - j m - t (ii) that Labour Court, while acting as a Magistrate must be deemed to be a Special Magistrate appointed under section 14 read with section 6, Cr.P.C., and , . (iii) that, therefore, while acting as a Magistrate the Presiding Officer of a Labour Court is, in fact* a criminal Court subordinate to the High Court. . .

1 9. The learned Additional-Advocate General, appearing for the State, confined himself to reiterating the reasons recorded by the High Court in the impugned judgment for arriving at its conclusion.

J I.

10* We have given our careful consideration! to the question involved in this case.

T, fc We notice that the High Court has * based . its decision on the question issue on the concept 'subordinations* i.e. on the assumption that the High Court can interfere in exercise of its jurisdiction under section 561-A, Cr.P.C., only in such criminal proceedings as are,pending before a criminal Court inferior or subordinate to.it. With utmost respect, this was not the correct approach to the question.

r " 11. The matter, in our view, is not to the adjudged on the basis as to whether or not a Labour Court is subordinate to the High Court or whether an appeal from its decision . lies to the High Court or some other, forum. What is to be determined is- whether the provisions of section 561-A, Cr.P.C. apply to, criminal proceedings pending before the Presiding Officer ola Labour Court, If section 561-A, Cr.P.C. applies then the High Coftrt can certainly exercise its jurisdiction under the said section.

j -m * * It may be mentioned that although section 36 of the I.R.O. provides that for the purpose' of trying offences under the Standing Orders Ordinance,-a Labour Court has the same powers of Magistrate 1st Class specially empowered under section 30, Cr.P.C',, yet there is nothing to indicate that he is'appointed as a 'Special Magistrate1 under section 14 of the Criminal Procedure .Coda, It cannot, therefore, belj said that he was functioning as a 'Magistrate1 envisaged by section 6 . of the Cr.P.C. and was thus, subordinate to the High Court. In our opinion the relevant provision for the purpose of this case is subsection (2) of section 5 of the Cr.P.C. For Facility of reference the whole of section 5 may be reproduced here:- \ . 1 L \ Section 5, Cr.P.C. "Trial of offences under Penal Code:- (1)A11 offences under the Pakistan Penal Code shall be investigated, inquired into, tried, and otherwise dealt with according to the provisions hereinafter contained.

(2) Trial of offences against other laws, tried, and otherwise dealt with according to the same

provisions, but subject to any enactment for the time being in force regulating the manner or place of investigating, inquiring into, trying or otherwise dealing with such offences." This section enumerates the (criminal) cases, to which the provisions of the Code of Criminal Procedure shall apply. Section 5(1) lays down that these shall apply to all offences under the Pakistan Penal Code which shall be investigated, inquired into, tried and otherwise dealt with according to the provisions thereof.

Subsection (2) of the said section - relates to application of the provisions of the Code of Criminal Procedure, to offences against other laws, which would include offences created by the provisions of section 12 of the Schedule made under section 2(g) of the West Pakistan Standing Orders Ordinance, 1968. It lays down that subject to any enactment to the contrary, all offences under any other law shall be investigated, inquired into, tried or otherwise dealt with, according to the provisions of the Cr.P.C. It lays down that to the extent it is specifically excluded by the special enactment, cases under 'other laws' shall also be investigated, tried or otherwise dealt with, in the manner provided by the provisions of the Cr.P.C.

12. According to the provisions of subsection (1) of section 36 of the I.R.O., the mode of trial of cases triable by the Labour Court shall be as nearly as possible the same as prescribed in the Code of Criminal Procedure. Therefore, notwithstanding the fact that the case before it is such which would ordinarily be tried by the procedure provided, for example, in Chapter XXII-A of the Cr.P.C. the Labour Court shall try it only according to the summary procedure prescribed in Chapter XX of the Cr.P.C. But it will be noticed that there is mention in the I.R.O. as to the manner in which cases triable by a Labour Court, shall be investigated, inquired into or "otherwise dealt with". In other words, the provisions of the Cr.P.C., will be applicable for these purposes.

i 13. The question as to whether or not any proceedings pending trial before a Court should be quashed (under section 561-A, Cr.P.C.) neither relates to investigation nor 'inquiry into' or 'trial' of that case, but would be covered by the expression "otherwise dealt with". Therefore, the provisions of section 561-A, Cr.P.C. would be applicable to a criminal case being tried by a Labour Court under section 35/36 of the I.R.O., notwithstanding the fact that the said Court is not subordinate to the High Court and that an appeal from its decision does not lie to the High Court but to the Labour Appellate Tribunal under section 37 of the I.R.O.

14. The next question to be considered is whether or not the High Court should have refrained from exercising its power under section 561-A, Cr.P.C. in view of the provisions of section 24-A. The last mentioned section empowers the trial Magistrate to acquit the accused at any stage of the case, after, hearing the prosecutor and the accused, if it considers that no case is made out against the accused or that there is no probability of the accused being convicted under the offence alleged against him. This power is, indeed, very similar to the power conferred on the High Court by section 561-A, Cr.P.C.

inter alia "to prevent the abuse of the process of any Court". While considering the nature of the powers of the various Courts under section 249-A, Cr.P.C. It was observed by Mr. Justice Rustam S. Sidhwa, in the case of *Din Muhammad v. Muhammad Shafiq* [1979 P Cr. L J 59] that a special Court, whether civil or criminal, in the absence of any provisions of the procedural law is deemed to possess inherent power by the very fact of its being a Court of law and section 249-A, Cr.P.C., is merely declaratory of the said principle. We are respectfully inclined to agree with this view. It follows that the provisions of section 249-A, Cr.P.C. do not interfere with the inherent jurisdiction of the High Court, but on the other hand/ as held in *Butani v. Pappu* [1980 P L D 49], the powers of the High Court and the Special Court, are co-extensive and concurrent in this respect. No doubt, ordinarily, the trial Court should be approached in the first

instance, as was done in the present case. ' * s -i 15: It may be mentioned that there are some decisions of the High Court wherein it has been held, on the basis of Khushi Muhammad and others y. State 1979 .S G MR 94 that, the High Court can no longer interfere ; under section 561-A», Ct.P.

to quasi criminal proceedings pending: trial, because similar powers have; now "been; conferred , on trial,, by .sections- *.249.-A., * Cr.-P. C. -and 265-K, Cr.PiC. This view is,; however , based on a", misinterpretation of the'above-noted judgment of .this Court. Although in that case this Court dismissed the petition for .leave . to .appeal against the refusal by the High Court to exercise its jurisdiction, under section 561-A, Cr-JP.Ci," but .as observed by this Court in Syed Manzoor Hussain Shah v.

Syed/ Agha Husfeain Naqvi and another 1983 S' C M R 775, the main reason for dismissing the petition was that on the facts as they stood at the time .when, the matter was heard by it , the High Court, was justified. in refusing to quash the proceedings.. This is evident from the following observation in the case of Mushi Muhammad:- * ~ * w "We further observe that the order of the High Court was passed on 26-8-1978; and on the material then available on the record no objection could legitimately be taken to the order of the High Court dismissing the petition. It is only on the 20th September, 1978, after the statement of Abdul Ghani (P.W*5) was recorded., that the argument that there is no likelihood of the petitioners being convicted and their continuing prosecution * would be an abuse of the process of the Court has become available. The order of the High Court cannot, therefore, be said to be ' erroneous and liable to .be set aside in . the present i , A v proceedings.11 ' i r 16. As a result of the above discussion we hold; that provisions of section 561-A, Cr.P.C. apply to the proceedings pending before any Court, whether subordinate to the High Court or not, unless ;the offence being tried is an offence under any law other than the Pakistan Penal Code and the power has been specifically taken away by any enactment relating to the said (special) law; and , that the powers of the trial Court under .sections 249-A, Cr.P.C.

and 265-K,; Cr.P.C. are co-extensive with the similar powers of the High Court under section 561-A, Cr.P.C., and both can be resorted TO.

It would, of course, be proper to approach the trial Court in the first instance but there is nothing to bar the High Court from entertaining, in appropriate cases, an application under section 561-A, Cr.P.C., directly.

17. The legal questions having been resolved, we now proceed to decide the case in hand on merits. .

As already observed in the narration of facts, the appellant (Mian Munir Ahmad) is the Managing Director of the Factory in question. He lives in Karachi and works at his head office situated on Wallace Road, Off 1.1. Chundrigar Road, Karachi, while the Factory where the product is manufactured, is situated at Kotri in District Dadu. The affairs of the Factory are looked after by the Factory Manager and are under his direct supervision and control. Mr. Nadir Khan, Assistant Director of the Labour Department, at Hyderabad, visited and inspected the Factory at Kotri on 25-9-1980. Thereafter, on 4-10-1980 he issued a show-cause notice (attached at page 335 of the Paper Book) stating various contraventions of the Labour Laws committed by the appellant. The relevant contravention, mentioned in para. 4 of the said show-cause notice is in the following words:- p "that the workers of the contractor have not been provided with attendance ticket, as required under section 2(g) of the Standing Orders Ordinance, 1968." ' (Note:- The underlining is ours).

the word "contract" in the complaint he could easily explain away > the expression "workers of the contractor" used by him, in paragraph 4 of the show-cause notice. He has, however, not been able to hoodwink anyone and it is quite clear that in the show-cause notice the only allegation with respect to non-issuance of the attendance tickets was that- the same had not been issued by the Factory to the "workers of the contractor".

18. It is an admitted position that an employer is required to issue such tickets only to the persons employed by him as workers. This stands to reason because a factory owner may, for example, to erect an additional structure within the Factory premises and for this purpose he may employ a building contractor on the terms settled with him.; Naturally the contractor would employ his own labour who would obviously not be the employees of the Factory. Nor would, in such a case, the Factory Management be responsible for them in any manner and would not be required to issue attendance tickets to such workers under section 2 of Schedule 2(g) of the Standing Orders Ordinance.

19. Non-issuance of Attendance Tickets to the 13 workers in question, is the only charge being pressed against the appellant who is required to come all the way from Karachi and attend the Labour Court at Hyderabad on each date of hearing. It is, however, crystal clear that since the allegation in the show-cause notice, which is prior in time as compared to the complaint, relates to the workers of the contractor, i.e. the workers employed by the Contractor, the case against the appellant must, ultimately, fail. It is, therefore, regrettable that the said Nadir Khan should have been permitted to harass the appellant on an allegation of this nature. It is well known that the Factory Inspectors have vast powers which some of them do not hesitate to misuse.

20. As a result of the above discussion we allow all the 13 appeals and quash the criminal proceedings pending against the appellant before the Labour Court VI-at Hyderabad under section 2 of Schedule 2(g) of the Standing Orders Ordinance. 21. It will be open to the appellant to seek his remedy against Nadir Khan, Assistant Director "before the appropriate criminal or civil Court, if so advised.

Proceedings quashed.

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